

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

May 11, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Dr. Rinne. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #35(d) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Mr. Spiker declared a conflict of interest pertaining to Consent Agenda item #38 (a) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

RECOGNITION OF THE 100TH ANNIVERSARY OF COMMUNITY SERVICE BY THE CHEYENNE FIRE AND RESCUE DEPARTMENT. Fire Chief Guy Cameron commented on the celebration of the 100th anniversary of the Fire Department, recognizing those who have supported the department over the years, including former Hook and Ladder companies, previous Fire Department staff, citizens of Cheyenne who have supported the 5th and 6th penny sales tax which helps fund the department, and current and former members of the governing body. He briefly reviewed the fire department's history and services that have been provided. In recognition of support by current members of the governing body, Chief Cameron presented each member present with a letter of appreciation and a commemorative coin. Mayor Kaysen expressed appreciation and gratitude to past and present Fire Department staff.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON APRIL 27, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON MAY 4, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (voucher payable to his business, Ameri-Tech HVAC Services, \$15,562.50) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists

for the property described as being situated in a portion of NW ¼ of the SW ¼ of Section 20, T. 14N., R. 66W., of the 6th P.M., Laramie County, Wyoming (located east of and adjacent to Powderhouse Road across from McCue Drive). Don Threewitt, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING LOT 5, BLOCK 2, SEAVER’S SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTHEAST OF HARMON AVENUE AND EVERTON DRIVE AND INCLUDING ADJACENT RIGHTS-OF-WAY HARMON AVENUE AND VICTORIA DRIVE).” Mr. Spiker declared a conflict of interest (family relationship with the developer) and vacated Council Chambers. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#3843)

“AN ORDINANCE CREATING SECTION 5.76.090, TICKET SCALPING OR RESALE-PROHIBITED PRACTICES; EXCEPTIONS, OF CHAPTER 5.76, TEMPORARY OR TRANSIENT MERCHANTS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Mayor Kaysen advised at the request of the sponsor, the item was being withdrawn from the agenda.

“AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO BUSINESS LICENSE AND PERMIT FEES” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO FEES FOR FALSE ALARMS; PUBLIC DISPLAY FIREWORKS PERMITS; FLAMMABLE AND COMBUSTIBLE LIQUIDS AND FUEL DISPENSING BUSINESS LICENSES; PORTABLE FIRE EXTINGUISHERS AND HOSE STATION EQUIPMENT BUSINESS LICENSES; FOOD AND FOOD SERVICE ESTABLISHMENTS BUSINESS LICENSES AND PERMITS, AND NOISE CONTROL PERMITS” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING SECTION 9.24.110 OF CHAPTER 9.24, WEAPONS, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO THE FEE FOR A FIREARM DEALER’S BUSINESS LICENSE” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING SECTIONS OF CHAPTER 10.56, HANDICAPPED PARKING SPACES; CHAPTER 10.64, LOADING AND UNLOADING, AND CHAPTER 10.68, CRITICAL TRAFFIC AND PARKING AREAS, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO PERMIT FEES FOR HANDICAPPED PARKING SPACES, CURB LOADING AND UNLOADING ZONES, AND

CRITICAL TRAFFIC AND PARKING AREA RESIDENTIAL PARKING PERMIT FEES” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 12.20, CEMETERIES, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO CEMETERY FEES” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Collins).

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, TRACTS 249, 250, 251, 252, SUNNYSIDE ADDITION 6TH FILING, EXCEPT NORTH 240 FEET THEREOF, INCLUDING PORTIONS OF CHARLES STREET AND ARTHUR STREET” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF SECTIONS 30, 31, AND 32, T.14N., R.65W., AND A PORTION OF SECTION 36, T. 14N., R 66W., OF THE 6TH P.M. GENERALLY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED AS FOLLOWS: CAMPSTOOL ROAD COMMENCING AT COMMERCE CIRCLE, THENCE EASTERLY AND SOUTHERLY TO INTERSTATE 80, CHRISTENSEN ROAD COMMENCING AT CAMPSTOOL ROAD, THENCE NORTHERLY TO THE UNION PACIFIC RAILROAD, AND VENTURE DRIVE COMMENCING AT CAMPSTOOL ROAD, THENCE EASTERLY TO THE INTERSTATE 80 SERVICE ROAD, LARAMIE COUNTY, WYOMING STREET” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING SECTION 13, PARKING, AS PREVIOUSLY AMENDED BY ORDINANCE #3799 FOR STOREY ACRES, SECOND FILING, REFINEMENT B; PREVIOUSLY KNOWN AS A PORTION OF STOREY ACRES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BOULEVARD, BETWEEN SUNSET DRIVE AND TOWNSEND PLACE)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY CHANGING THE DEFINITION OF OFF-PREMISE SIGN IN SECTION 17.04.040, DEFINITIONS, SIGNAGE, AND BY ADDING ADDITIONAL LANGUAGE TO SECTION 17.128.090 G., OFF-PREMISE SIGNS” -- referred to Public Services Committee (sponsor - Mr. Pierson).

“AN ORDINANCE AMENDING CHAPTERS 17.04 INTRODUCTORY PROVISIONS AND DEFINITIONS AND 17.128 SIGNS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002” -- referred to Public Services Committee (sponsor - Mr. Pierson).

“AN ORDINANCE AMENDING THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES, AND PENALTIES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010” -- referred to Finance Committee (sponsor - Mr. Pierson).

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010” -- referred to Finance Committee (sponsor - Mr. Pierson).

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEPTIC WASTE DUMP RATES AND LIQUID COMMERCIAL WASTE RATES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010” -- referred to Finance Committee (sponsor - Mr. Pierson).

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED TAP FEES, SYSTEM DEVELOPMENT FEES, PUMPSTATION FEES, AND OTHER RELATED FEES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010” -- referred to Finance Committee (sponsor - Mr. Pierson).

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEWER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010” -- referred to Finance Committee (sponsor - Mr. Pierson).

[CA] “A RESOLUTION APPROVING THE CITY OF CHEYENNE’S 2009 ANNUAL ACTION PLAN PREPARED BY THE CHEYENNE HOUSING AND COMMUNITY DEVELOPMENT OFFICE.” Motion (per Consent Agenda) carried. (#5131)

[CA] “A RESOLUTION RECOGNIZING THE CITY OF CHEYENNE FIRE AND RESCUE DEPARTMENT FOR 100 YEARS OF DEDICATED AND DISTINGUISHED SERVICE TO THE CITY OF CHEYENNE, WYOMING.” Motion (per Consent Agenda) carried. (#5132)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR ZOEYLYNN SUBDIVISION, 2ND FILING, A REPLAT OF LOT 5, BLOCK 2, SEAVER’S SUBDIVISION OF TRACT 16, DELL RANGE ADDITION, SECOND FILING, CHEYENNE, LARAMIE COUNTY, WY (LOCATED AT THE NE CORNER OF THE INTERSECTION OF EVERTON DRIVE AND HARMON AVENUE).” Mr. Spiker declared a conflict of interest (family relationship with the developer) and vacated Council Chambers. Mr. Brown moved to adopt with staff recommendation #1, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#5133)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CLASSIC SUBDIVISION, A REPLAT OF LOT 1, BLOCK 1, GRIFFIN ADDITION, AND A PORTION OF HAPPY JACK ROAD AND A PORTION OF WESTLAND ROAD, SITUATED IN A PORTION OF SECTION 1, T.13N., R.67W., AND IN A PORTION OF SECTION 36, T.14N., R.67W., 6TH P.M., CHEYENNE, WYOMING (LOCATED WEST OF MISSILE DRIVE, BETWEEN OLD HAPPY JACK AND WESTLAND ROADS)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE A LETTER OF INTENT WITH FIELD HOUSE DEVELOPMENT GROUP, LLC, FOR PURPOSES OF THE DEVELOPMENT OF AN INDOOR SPORTS COMPLEX IN THE CITY OF CHEYENNE” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION TO AMEND THE CITY OF CHEYENNE'S ANNUAL ACTION PLAN FOR FISCAL YEAR 2008-2009 TO INCORPORATE THE AMERICAN RECOVERY AND REINVESTMENT ACT OF 2009 FUNDING" -- referred to Finance Committee (sponsor - Ms. Broyles).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] Preliminary Plat for Life Care Center, 2nd Filing, a portion of the NW¼ of the SW¼ of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located east of and adjacent to Powderhouse Road, north of the existing Life Care Center)" -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Agreement between the City of Cheyenne, and RRT Design and Construction for the Transfer Station Addition. Motion (per Consent Agenda) carried (amount not to exceed \$89,500.00). (#5376)

[CA] Professional Services Agreement between the City of Cheyenne, Sanitation Department, and Alpine Waste and Recycling, for sorting, processing and marketing of single stream curbside recyclable materials. Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00/year). (#5377)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2009-2010 Concert Season. Motion (per Consent Agenda) carried (total revenue to City \$19,200.00). (#5378)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2009-2010 Youth Educational Concerts. Reporting for Finance Committee, Mr. Collins moved to approve in an amount not to exceed \$7,500.00, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present. (#5379)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide transportation services to Laramie County Community College, the City/County Health Department, and an area of Laramie County immediately adjacent to the City of Cheyenne. Motion (per Consent Agenda) carried. (#5380)

Cooperative Agreement between the Wyoming Department of Transportation and the City of Cheyenne for West Lincolnway Enhancements between Westland Road and Interstate 80 (2007-2010 1% Sales Tax, SLIB Funding, and ARRA Funding) -- referred to Finance Committee. Mr. Collins advised the item was discussed under other items for the agenda at the most recent Finance Committee meeting and that provisions of Title 2 of City Code had been met. Mr. Collins moved to approve, seconded by Ms. Broyles. Mr. Collins moved to amend by substitute Exhibit B, seconded by Ms. Broyles. Tom Mason, Cheyenne MPO Director, explained the estimated cost for the project was initially \$1.7 million with WYDOT agreeing to contribute \$1 million toward the median enhancements portion of the project, noting additional economic stimulus funds have been received. He advised WYDOT recently opened bids with the lowest bid received being less than

anticipated (\$973,000.00) and that the proposed substitute (Exhibit B) changes the dollar amount from \$1 million to \$973,000.00 (city's share estimated at \$16,574.00). He stated there will be some additional costs to the city (connections, construction management oversight, etc.) as the project progresses. Upon inquiry regarding adding landscaping to the north and south side of the corridor, Mr. Mason advised it may be possible to implement at some point and could involve WYDOT approval through a change order. He explained the median's design will have lighting and watering systems in the median and those systems could probably be tapped into in the future for watering landscaping that may be installed on the north/south side of the road. Comments followed on providing infrastructure, in conjunction with the project, for an irrigation/watering system for future landscaping on the north/south roadway areas to alleviate additional work involving reconstruction. Motion to amend by substitute carried. Voting "yes" – all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present. (#5381)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the use of the parking lot leased from the United States Department of the Air Force during the 2009 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One, to lease school buses from Laramie County School District Number One to provide transportation services during the 2009 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the use of buses leased by Laramie County School District Number One to provide transportation services during the 2009 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontiers Days, Inc., for the use of city-owned lands for parking, camping and other activities associated with the 2009 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County, Sheriff's Department, for Courthouse Security Services -- referred to Finance Committee.

[CA] Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and State of Wyoming, Department of Family Services, Protective Services Division -- referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne, Metropolitan Planning Organization and Alta Planning + Design for the Laramie County School District Number One Safe Routes to School Plan and Cheyenne Metropolitan Area Pedestrian Plan -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Civic Center, and Trizart Alliance, Inc., for Professional Services, Design Engineering and Bid Specification Preparation for Automated Stage Rigging Installation (SLIB Funding) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 7 to Contract No. 4363 between the City of Cheyenne and TriHydro Corporation to provide for environmental monitoring for the remainder of 2009 and revise the cost of completing three additional wells at the Happy Jack Landfill -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-11-09 for a contract between the City of Cheyenne and Knife River for the Fiscal Year 2009 City Overlay Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,346,505.00). (#5382)

[CA] Consideration of Bid #R-26-09 from Peterbilt of Wyoming for furnishing 2 new cab and chassis with automated refuse side loader, for the Sanitation Department.. Motion (per Consent Agenda) carried (amount not to exceed \$455,924.00).

[CA] Consideration of Bid #R-27-09 for the surplus sale of one used Troxler Electronic Road Reader Model 3450 utilized by the Construction Department to Troxler Electronic Labs of Research Triangle Park, NC.. Motion (per Consent Agenda) carried (total revenue to City \$800.00).

[CA] Consideration of Bid #M-12-09 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River for the FY 2009 Concrete, Milling and Utility Adjustment for the Street and Alley Department. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-17-09 for a contract between the City of Cheyenne, Public Works, and S&S Builders, LLC, for the Construction & Demolition Recycle Building at the Landfill. (SLIB Funding) -- referred to Finance Committee.

[CA] Consideration of Bid #M-23-09 for a contract between the City of Cheyenne, Facilities Maintenance, and Ameri-Tech HVAC Services, Inc. for Mechanical and HVAC System Maintenance for 14 City Buildings -- referred to Finance Committee.

APPLICATIONS/LICENSES/PERMITS:

[CA] Restaurant liquor license application filed with the City Clerk's Office for Sandra J. Inniss d/b/a 2 Doors Down, 118 E. 17th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made that due to the Memorial Day holiday on Monday, May 25, 2009, the regular meeting of the Governing Body will be held Tuesday, May 26, 2009 at 6:00 p.m. in City Council Chambers.

Announcement was made of three calcuttas to be held at the Plains Hotel, Range Room, 1600 Capitol Avenue, Cheyenne, WY on Friday, June 12, 2009 at 11:00 a.m. and 7:00 p.m., and Saturday, June 13, 2009 at 7:00 p.m. in conjunction with the Cheyenne Depot Museum's 2009 Peppers On The Plaza, Cheyenne's Chili Cook-Off Event. Proceeds to benefit United Way of

Laramie County, Cheyenne Depot Museum and Cheyenne Depot Museum Foundation.

Announcement was made of a calcutta to be held Thursday, June 4, 2009 beginning at 7:00 p.m. at Uncle Charlie's Lounge, 6001 Yellowstone Road, in conjunction with the annual Uncle Charlie's "DONE" golf tournament (15% of proceeds to benefit the Cheyenne Boys and Girls Club).

Announcement was made of the Re-Appointment of Jeannine Stallings to the Public Transit Advisory Board; David Evans to the Board of Public Utilities; Janet Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board; and Debbie Disney-Caldwell to the Tourism Promotion Joint Powers Board, to be confirmed May 26, 2009.

OTHER CITY BUSINESS:

John Fafoutakis commented on the opportunity to be heard under other business at City Council meetings, specifically referencing the April 27, 2009 meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:44 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 21, 2009